

HOUSE No. 4281

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 23, 2025.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 435) of John J. Mahoney relative to the right or obligation to sell items with brand names to wholesalers; and the petition (accompanied by bill, House, No. 445) of Michael J. Moran relative to termination of sales to wholesalers by suppliers of alcoholic beverages, reports recommending that the accompanying bill (House, No. 4281) ought to pass.

For the committee,

TACKEY CHAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to successor supplier laws and the termination of sales to wholesalers of alcoholic beverages.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 138 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 25E 3/4 the following new section:-

3 Section 25E 7/8. (a) For purposes of this section, a “successor supplier” shall mean any
4 person who directly or indirectly acquires the right or obligation to sell an item with a brand
5 name to a wholesaler licensed in the commonwealth.

6 (b) Any successor supplier acquiring a right or obligation to sell to a wholesaler shall be
7 subject to the agreement, whether oral or in writing, between the wholesaler and the supplier
8 existing at the time of succession.

9 All sales of a brand name item made to a licensed wholesaler prior to succession shall be
10 attributed to the successor supplier for the purposes of determining whether six months of regular
11 sales exist pursuant to section 25E. The provisions of section 25E shall be binding on any
12 successor supplier.